



POLICY NUMBER: 38

WORKPLACE BULLYING POLICY

Prepared by: Division of Human Resources

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1. Policy Overview

- 1.1. The University is committed to providing a positive working environment free from intimidation, ridicule and harassment. Every Manager/Head of Department, supervisor and employee has a responsibility to maintain a working environment free from negative and bullying behaviour.
- 1.2. The University shall investigate all complaints of bullying and will take remedial action where necessary.

2. Policy Principles

- 2.1. The principles which apply to the workplace bullying complaints procedure are:
 - 2.1.1. everyone has a right to be treated with respect
 - 2.1.2. everyone has a right to natural justice
 - 2.1.3. complaints will be treated in confidence and when confidentiality cannot be guaranteed this will be clearly indicated
 - 2.1.4. access to counselling for affected workers, and
 - 2.1.5. all incidences of bullying will be dealt with promptly, thoroughly, fairly and confidentially
- 2.2. Making false or malicious complaints of bullying shall be regarded as a serious disciplinary offence.

3. What is Workplace Bullying?

- 3.1. Workplace bullying is the tendency of individuals or groups to use persistently aggressive or unreasonable behaviour against a co-worker, subordinate or supervisor.
- 3.2. Workplace bullying has the deliberate intent of causing physical and/or psychological distress to others.
- 3.3. Workplace bullying can include such tactics as [verbal, nonverbal, psychological, physical abuse and humiliation](#). Bullying at the workplace can include:
 - 3.3.1. public humiliation(s), or regularly being quick to criticize and slow to praise, or unreasonable persistent criticism, which is not part of a managing performance process, or loud and aggressive attacks or more subtle intimidation such as constant criticism of a trivial nature;
 - 3.3.2. regularly threatened with dismissal in the presence of other employees or persons;
 - 3.3.3. regularly threatening the supervisor;
 - 3.3.4. any form of behaviour that undermines the ability of the employee to perform or advance in his/her profession; e. taking credit for work the alleged victim has done;

- 3.3.5. unfairly passed over for promotion or denied training opportunities;
 - 3.3.6. social ostracism or isolating the employee from colleagues;
 - 3.3.7. physical assault or verbal and physical abuse, for example, shouting and throwing objects at the employee; and
 - 3.3.8. refuse to delegate or withhold information the employee needs to perform their job, and/or removing responsibility and/or imposing menial tasks when such action is not merited on account of performance.
- 3.4. Bullying does not include:
- 3.4.1. differences of opinion, and non-aggressive conflicts and problems in working relations, and
 - 3.4.2. workplace counselling, managing underperformance and other action in accordance with HR policy and procedures.
- 3.5. Behaviour will only be defined as bullying if a “reasonable person” observing the situation would consider it to be bullying. The reasonable person is defined as an objective third party in the industry/profession.
- 3.6. The test of workplace bullying is that the activity(ies) have the deliberate intent of causing physical and/or psychological distress to others.

4. Effects of Bullying

- 4.1. The effects of bullying on the person can include:
- 4.1.1. severe psychological distress, sleep disturbances and general feelings of anxiety
 - 4.1.2. physical symptoms such as stomach-aches, headaches and general ill-health
 - 4.1.3. incapacity to work, reduced output and performance
 - 4.1.4. loss of self-confidence, self-esteem and sometimes even suicidal behavior
- 4.2. The effects of bullying on the organization can include:
- 4.2.1. lower workplace productivity and efficiency
 - 4.2.2. high employee turnover with resultant increase in recruitment costs, as well as down time costs as replacement workers are trained in their new jobs
 - 4.2.3. increased absenteeism and sick leave
 - 4.2.4. the direct cost of dealing with complaints of bullying such as the cost of counselling affected workers, costs associated with disciplinary action, and the like, and
 - 4.2.5. stress related costs via the workers' compensation system with resultant increase in insurance premiums and/or rehabilitation costs, poor morale
- 4.3. Bullying also affects the integrity and reputation of the University

5. Responsibilities of Managers and Supervisors

- 5.1. Managers and supervisors are responsible for ensuring that all employees understand that bullying is not tolerated at the workplace, and are responsible for taking early corrective action to deal with behaviour, which may be offensive or intimidating in nature.
- 5.2. If a manager or supervisor feels that a reported incident might constitute bullying and the

manager/supervisor feels that the nature of the complaint is outside their expertise, he/she shall refer the matter to the Division of Human Resources.

5.3. The prevention of bullying requires managers and supervisors to:

5.3.1. be aware of, identify and prevent bullying in the workplace

5.3.2. eliminate bullying regardless of whether a complaint is received or not

5.3.3. encourage all employees to behave in accordance with the principles of equal opportunity and anti-discrimination

5.3.4. provide leadership and role modelling in relation to appropriate and professional behaviour in the workplace, and

5.3.5. respond promptly, sensitively and confidentially to all situations where bullying is exhibited or is alleged to have occurred.

6. Employee and Co-Worker Responsibilities

6.1. The prevention of bullying requires employees to be responsible for the following actions:

6.1.1. be aware of and identify bullying behaviour and where appropriate, utilize internal or external mechanisms to stop any further instances of bullying behaviour, and

6.1.2. behave in accordance with the principles of equal opportunity and anti-discrimination.

6.2. If bullying behaviour is witnessed or experienced and the employee feels that he/she is able to, then the employee may speak with the alleged bully to object to the bullying behaviour.

6.3. If bullying behaviour is witnessed, the employee shall act as a witness if the matter proceeds to investigation stage.

6.4. An employee who experiences bullying may seek advice and assistance from any of the following: a. a member of the senior management group

6.4.1. immediate supervisor or manager, or

6.4.2. Division of Human Resources

6.5. Employees who experience bullying can seek to resolve the situation informally or formally.

7. Informal complaints procedure

7.1. Employees should contact their supervisor, the Division of Human Resources or an employee in the Vice Chancellor's office to discuss their concerns.

7.2. Informal resolution may also include local mediation between parties at the workplace when appropriate.

7.3. A supervisor or manager who observes unacceptable conduct occurring may take independent action to report the matter to the Division of Human Resources even though no complaint has been made.

8. Formal complaints

8.1. A formal complaint of bullying will need to be made in writing, to the Director of Human Resources, who shall investigate and make a preliminary determination on whether bullying has occurred.

8.2. If it is established that bullying has not occurred, the Director shall provide a full written report on this to the Vice Chancellor.

8.3. If it is established that bullying has occurred, the Director shall:

8.3.1. advise the parties of the outcome

8.3.2. arrange for suitable counselling of the parties, or

8.3.3. carry out a second investigation within six months of the completion of all counselling to ascertain whether the problem has been resolved.

8.4. If within six months, a repeat bullying incident is reported by the aggrieved employee, the matter shall be referred to the staff conduct committee for its consideration.

9. Confidentiality

9.1. An accusation of bullying can be potentially defamatory, especially if confidentiality is not observed and a person's reputation is unfairly damaged. Discussions, information and records related to complaints must on all occasions remain factual and confidential.

9.2. All documentation and details of bullying enquiries and grievances shall be kept securely by the Human Resources Department.

10. Victimisation

10.1. Victimisation as a result of reporting workplace bullying is regarded as a serious breach of conduct and will automatically result in a formal investigation, which if proven, may result in disciplinary action being taken against the perpetrator, which may include dismissal.

11. Counselling mandatory

11.1. It is University policy to provide mandatory counselling to victims of workplace bullying.